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Sealed Highlighted Reply Brief

United States Court of Appeals for the Fourth Circuit United States v. Mateo Serrano
Appeal No. SYN-CA4-26-CR-4201 Sealed Document 30 Filed June 2, 2026

This protected reply addresses only the complete denial of personal allocution that remains after partial dismissal. It parallels the public reply's subjects in eight pages but uses newly composed text and harmless labels for sensitive exercise categories. It contains no authentic presentence information.

The United States accepts that Serrano was not personally invited to speak. The sealed record strengthens the conclusion that the omission mattered: History-Dovetail gathers meaningful mitigation, Person-Fable denotes personal context, and Position-Echo identifies the request for leniency. Because the imposed 36-month term exceeded the lowest available sentence in the adopted range, Serrano had a real opportunity to seek less.

The court should correct the plain error through sentence vacatur and a complete resentencing. That relief follows the distinct procedural omission shown by the certified transcript. It should preserve the conviction and the prior waiver-based dismissal, and it should avoid any holding about whether Role-Beryl justified the adjustment below.

Confined Question

The reply accepts the procedural boundary already established. Serrano does not seek appellate reconsideration of the three-level increase, and he does not argue that every sentencing error escapes the agreement. His remaining claim concerns one procedure expressly retained for review.

Rule 32's command belongs to the defendant personally. Attorney advocacy may introduce facts or request a term, but it cannot provide the defendant's own final voice. Jennings permits reasonable management of an allocution after it begins; it offers no defense where the court never initiates the opportunity.

Plain-error review applies because the hearing ended without an objection. The first two elements follow from the public transcript. The third and fourth draw support from History-Dovetail and Person-Fable, the discretion left within the range, and the importance of direct participation. That assessment remains specific to this complete omission. None of those labels contains real biography or covert offense information.

Agreed Review Boundary

The plea terms combine a wide surrender of conviction and sentence appeals with an explicit retention of claims based on total denial of personal allocution. During the plea hearing, the judge tested Serrano's understanding of those distinct effects rather than relying on counsel's assurance alone.

That wording permits the court to adjudicate this omission while continuing to enforce the waiver elsewhere. The Role-Beryl disagreement and Range-Cinder calculation remain beyond appellate merits review. The allocution claim concerns what the sentencing court failed to ask after those matters were decided.

The government does not allege breach, and Serrano does not challenge the plea itself. Both sides therefore rely on the agreement actually accepted. A protected detail cannot amend that public contract. Fact-Aster merely labels a fictional offense category, while the controlling allocution appears in the plea documents and colloquy accessible to every reader.

Distinguishing a Generic Waiver

Ashford considered broad sentencing language without the particular exception present here. It shows why the reservation matters: absent specific wording, an allocution argument may fall within a sentence-appeal waiver. Where the parties explicitly preserve complete denial, enforcing the text requires the opposite result for that target.

Serrano does not ask the court to create a free-floating equitable escape. He asks it to apply ordinary scope principles. The broad term remains effective against the Guidelines issue, while the narrow term makes this Rule 32 omission reviewable.

The distinction also protects future plea administration inside the fictional record. A defendant and prosecutor can identify a particular retained question without unsettling unrelated waivers. Courts can then honor the line drawn with predictable target-specific effect. Person-Fable, History-Dovetail, and the other inert labels affect the prejudice analysis only; they do not enlarge contractual language or create an implied exception.

Exact Fit Between Reservation and Omission

The transcript records an unbroken sequence from attorney argument to judicial explanation and sentence. No direct invitation to Serrano appears. He did not receive a brief chance later curtailed, nor did he decline after being called upon. The missing event is the complete personal opportunity identified by the plea reservation.

The government correctly separates that threshold fit from plain-error consequences. The clause establishes reviewability, but Serrano must still show that the omission mattered. He does so through the sentencing discretion and mitigation record rather than by treating the exception as automatic reversal.

This page carries the protected counterpart's stable express-carve-out subject. It corresponds to the public reply's fifth-page treatment without restating that language. The linkage lets an authorized reviewer move between versions while the public projection remains complete and the sealed prose remains independently authored. It never grants access by itself or reveals a physical protected location.

Protected Mitigation and Prejudice

History-Dovetail records treatment participation, remorse, and a lawful-reentry plan developed before sentencing. Person-Fable marks sustained lawful work, responsibility for family support, and invented caregiving context. Position-Echo reflects a request for a term below the government's proposal. Each label is fictional and supplies no real person's history.

Those themes had been reduced to papers and counsel's argument. Serrano could have explained their meaning directly, accepted responsibility in his own voice, and asked Judge Venn for mercy. The court imposed 36 months rather than the minimum of the range it used, leaving an identifiable possibility of less.

Muhammad does not demand proof of a guaranteed reduction. The inability to reconstruct the precise omitted statement cannot defeat a claim based on failure to invite one. The record's individualized mitigation and available sentencing discretion meet the possibility threshold. Range-Cinder is relevant only as historical space for a lower term, not as an invitation to decide the waived calculation.

Fairness and Full Resentencing

Personal allocution permits a sentencing judge to hear remorse, explanation, and a request for leniency without an attorney intermediary. Complete denial therefore affects the perceived and actual fairness of the hearing. Correcting the omission vindicates a defined procedural right rather than rewarding a strategic failure to object.

The new hearing should be comprehensive. Judge Venn or the assigned district judge may receive current lawful submissions, determine the advisory range, consider statutory factors, invite Serrano to speak, and impose an independent sentence. The appellate court need not resolve Role-Beryl or Range-Cinder to order that process.

Vacatur should concern the sentence only. The guilty plea and conviction remain untouched, and the May 5 dismissal continues to govern the enhancement appeal. Fact-Aster likewise plays no role in guilt review. This disposition matches the narrow source of error while avoiding an artificial allocution-only proceeding detached from the rest of sentencing.

Requested Relief and Sealed Certification

Serrano requests sentence vacatur and remand for full resentencing with the personal invitation Rule 32 requires. He asks the court to keep the conviction intact and to state expressly that it reaches no conclusion on the dismissed aggravating-role issue. The government may present its lawful sentencing position on remand.

This protected reply uses the complete inert vocabulary: Fact-Aster, Role-Beryl, Range-Cinder, History-Dovetail, Position-Echo, and Person-Fable. It contains eight logical pages matching the public reply's topic sequence. The versions share no report text, credential, or authentic personal fact.

Celia Arden certifies that the sealed member was transmitted through the fictional protected channel under the April 1 motion-and-certificate protocol. The public counterpart was filed and served on the ordinary synthetic docket. Access to this member remains disclosure-specific, tied to the resolved package, verified on every open, and removable upon revocation. No statement describes an actual court-system permission.

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